

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANN GOLDSMITH,

Petitioner

VS.

GILL COGAN,

Respondent

) Case Number: FDI-18-790407

) Hearing Date: September 22, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: JUDITH HARDING

REQUEST FOR ORDER - OTHER: APPOINT ELISOR TO SIGN JOINT FEDERAL RETURN

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Ann Goldsmith (Wife) and Respondent Gill Cogan (Husband) married on 6/30/1979. In her Petition, Wife stated the parties' date of separation is TBD. In his Response to the Petition, Husband stated the parties' date of separation is 5/22/2018, for a marriage of 38 years and 10 months. Husband is represented by attorney Christopher Emley. Wife was formerly represented by attorney Christopher Donnelly, who filed a Substitution of Attorney exiting this case on 6/4/2024.
- 2) On 7/22/2020, a Stipulation for Order and Order Re 2018 Tax Returns and Payment was filed. The Stipulation provides in relevant part: "Petitioner and Respondent shall file joint state and federal tax returns for the 2019 tax year."
- 3) On 2/27/2023, a Judgment was entered which incorporated the parties' settlement agreement.
- 4) Now on for hearing is Husband's Request for Order filed 7/27/2026. Husband states that the parties' tax preparer submitted the parties' 2019 tax returns to the IRS in 2020. The IRS alerted Husband in October 2025 that Wife had failed to sign the 2019 tax returns. Husband states that

1 the California Franchise Tax Board accepted the unsigned returns, but the federal IRS has refused
2 to do so. Husband states that, through counsel, he has made repeated attempts to secure Wife's
3 signature on the federal return and Wife has ignored those efforts entirely. Husband lodged a
4 copy of the 2019 joint federal tax return. Husband asks the Court for the following orders to avoid
5 the possibility of further accumulation of interest and penalty charges:

- 6 a. The Clerk of the Court to be appointed as elisor to sign on behalf of Wife the parties'
7 2019 joint federal tax return.
 - 8 b. Reserve jurisdiction to award fees and costs for Husband's having to file the Request for
9 Order due to Wife's failure to respond to repeated efforts to resolve the matter
10 informally.
 - 11 c. Reserve jurisdiction to apportion between the parties any additional taxes, interest, and/or
12 penalties imposed by IRS as a result of delay.
- 13 5) Per the Proof of Service filed 9/1/2026, Wife was personally served with Husband's Request for
14 Order, lodged tax returns, blank Responsive Declaration, and Tentative Ruling Instructions on
15 8/27/2026. Attached to the Proof of Service is a declaration signed under penalty of perjury by
16 the third party (Kathleen Peloquin) who performed the service. Ms. Peloquin states that she
17 arrived at Wife's address and knocked on her door. Ms. Peloquin states Wife answered "yes"
18 when Ms. Peloquin asked if she was Ann Goldsmith. Ms. Peloquin handed Wife the documents.
19 After taking the documents, Wife attempted to hand the documents back to Ms. Peloquin and
20 said, "no, no, no!" Ms. Peloquin told Wife that she could not accept the documents back from her.
21 Wife threw the envelope out from her door and landed on her driveway. Ms. Peloquin picked up
22 the envelope and put it on Wife's doorstep while Wife stood behind her storm door. Wife exited
23 her house and threw the documents onto the windshield of Ms. Peloquin's car. Ms. Peloquin
24 tossed the envelope onto Wife's driveway and drove away. Ms. Peloquin states that as she was
25 driving away, she saw a police car approach Wife's home and stop.
- 26 6) Wife did not file a Responsive Declaration.

27 **B. Findings and Order**

- 28 1) The Court finds that service of Husband's 7/27/2026 Request for Order was properly effectuated.
- 29 2) The Court hereby grants Husband's unopposed requests:

- 1 a. Court Executive Officer Brandon Riley is appointed as the elisor to sign the parties 2019
2 joint federal tax return on behalf of Wife. Husband shall contact the Administrative
3 Office in Room 205 at 415-551-5737 to schedule an appointment with Mr. Riley to sign
4 the documents. Husband shall bring to the appointment the necessary documents
5 requiring signature and a file-endorsed copy of this order.
6 b. The Court's jurisdiction is reserved to award fees and costs for Husband's having to file
7 his 7/27/2026 Request for Order.
8 c. The Court's jurisdiction is reserved to apportion between the parties any additional taxes,
9 interest, and/or penalties imposed by IRS as a result of delay.

10 3) Husband's attorney shall prepare the Findings and Order After Hearing.

11 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
12 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
13 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
14 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
15 proposed order after hearing directly to the court. Failure to submit the order after hearing within
16 10 days may allow the other party to prepare a proposed order and submit it to the court in
17 accordance with CA Rules of Court, Rule 5.125(d).